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December 5, 2025

VIA ELECTRONIC MAIL

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FOR SETTLEMENT PURPOSES ONLY — FED. R. EVID. 408

Re: Northbridge Industries, Inc. / Caldera Consulting Group, LLC

Dear Ms. Whitfield-Marsh:

We write in response to your letter of November 12, 2025. Caldera denies liability in its entirety and denies that your client is entitled to any recovery.

Your letter rests on a characterisation of internal Caldera working papers that we do not accept. A draft is a draft. Professionals disagree in the course of an engagement, and a firm that did not produce internal dissent would be a firm that was not doing its job. That a working draft reached a different conclusion from a final assessment is unremarkable and is not evidence of fraud.

Your client's Steering Committee made the decision to proceed on December 20, 2024. It did so with its own Director of Information Technology in the room, with access to the same defect data Caldera had, and after nine months of weekly status reporting. Your client accepted every deliverable and rejected none within the fifteen business days allowed by Section 7.6.

Even were liability established, which it is not, Section 14.2 limits aggregate liability to fees actually paid, and Section 14.1 excludes every category of loss in your Schedule A other than the fees themselves. Your reliance on Section 14.3 is misplaced; Illinois law does not permit a contracting party to plead around a negotiated limitation of liability by relabelling a contract claim as fraud, and the economic loss doctrine bars the tort counts you threaten.

Caldera counterclaims for $902,500 in unpaid invoices, together with $1,352,600 in work performed and not invoiced as at termination, and interest.

Caldera is nonetheless prepared to discuss resolution and will attend a mediation. We suggest Judge Osei-Bonsu. Caldera's participation is without prejudice and is not an admission.

Very truly yours,

Roger Nakashima
Partner